MUTUAL NON-DISCLOSURE AGREEMENT

This Mutual Non-Disclosure Agreement is entered into as of 05-February-2026

BETWEEN
www.wellbeingbuddy.com.au
Registered Address: Sydney, NSW, Australia

AND
www.anodiam.com
Registered Address: 8/71 Wolseley St, Bexley NSW 2207, Australia

Including interns, employees, consultants and approved delivery resources of both parties, collectively referred to as the "**Parties**".

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1. Purpose

The Parties wish to engage in discussions and exploratory work regarding a potential **technical partnership, product development, AI systems, software architecture, and delivery services** related to **Wellbeing Buddy's platform, products, and business** ("**Purpose**").

In connection with this Purpose, each Party may disclose certain confidential and proprietary information to the other.

2. Definition of Confidential Information

"**Confidential Information**" means any information disclosed by one Party ("Disclosing Party") to the other ("Receiving Party"), whether **oral, written, electronic, visual, or otherwise**, including but not limited to:

2.1 Business & Commercial Information

- Business plans, strategies, roadmaps, pricing, revenue models
- Investor materials, funding discussions, pitch decks
- Partnerships, school relationships, and commercial negotiations

2.2 Technical & Product Information

- Software designs, architecture, source code, APIs, system diagrams
- AI/ML models, algorithms, prompts, training logic, workflows
- Product features, prototypes, UX/UI, databases, schemas

2.3 Data & Wellbeing-Related Information

- Any student, educator, parent, or school-related data (identified or de-identified)
- Wellbeing, mental health, behavioural, or SEL-related data or logic
- Analytics, dashboards, alerts, or intervention frameworks

2.4 Operational & Internal Information

- Internal processes, methodologies, documentation
- Team structures, delivery models, offshore/onshore arrangements

2.5 Any information marked or reasonably understood to be confidential

3. Exclusions from Confidential Information

Confidential Information does **not** include information that a Receiving Party can demonstrate:

a) Is or becomes public through no breach of this Agreement
b) Was lawfully known prior to disclosure
c) Is independently developed without reference to the Confidential Information
d) Is rightfully received from a third party without confidentiality obligations
e) Is approved for release in writing by the Disclosing Party

4. Obligations of the Receiving Party

The Receiving Party agrees to:

a) Use Confidential Information **solely for the Purpose**
b) Not disclose Confidential Information to any third party except as permitted
c) Protect Confidential Information with **reasonable care**
d) Restrict access to Confidential Information only to personnel who:
   - Have a **legitimate need to know**, and
   - Are bound by confidentiality obligations no less restrictive than this Agreement

5. Offshore Contractor Access Explicitly Agreed

The Parties acknowledge & agree that **Anodiam operates an onsite–offshore delivery model**. Accordingly:

- Anodiam may share Confidential Information with its **approved offshore team members, interns, or contractors** strictly for the Purpose
- All such individuals shall be **bound by confidentiality obligations** equivalent to this Agreement
- Anodiam remains responsible for compliance by its personnel

6. Data Protection & Sensitive Information

Given the nature of **education and wellbeing platforms**, the Receiving Party agrees:

- To **not copy, extract, reuse, or repurpose** any personal, student, or school-related data
- To comply with applicable Australian privacy principles (APPs) and reasonable data-security practices
- That **no production student data** will be accessed unless explicitly agreed in writing

7. No License or Ownership Transfer

Nothing in this Agreement:

- Grants any license or ownership rights to intellectual property
- Creates a partnership, joint venture, or employment relationship
- Obligates either Party to proceed with a commercial agreement

All IP remains the property of the respective Disclosing Party unless otherwise agreed in writing.

8. Term & Survival

- This Agreement commences on the Effective Date
- Confidentiality obligations survive for **5 (five) years** from the date of disclosure
- Trade secrets and sensitive wellbeing-related information shall remain confidential indefinitely where permitted by law

9. Return or Destruction of Information

Upon written request or termination of discussions, the Receiving Party shall:

- Return or securely destroy all Confidential Information
- Retain one archival copy solely for legal or compliance purposes

10. Legal Disclosure

If disclosure is required by law, regulation, or court order:

- The Receiving Party shall provide prompt notice (where legally permitted)
- Disclosure shall be limited to the minimum required

11. Remedies

The Parties acknowledge that unauthorized disclosure may cause **irreparable harm**. The Disclosing Party is entitled to seek **injunctive relief**, in addition to any other remedies available at law.

12. Governing Law

This Agreement is governed by the laws of **New South Wales, Australia**, and the Parties submit to the exclusive jurisdiction of its courts.

13. Entire Agreement

This Agreement constitutes the entire understanding between the Parties regarding confidentiality and supersedes all prior discussions.
Any amendments must be in writing and signed by both Parties.

14. Signature

Party: www.anodiam.com / www.wellbeingbuddy.com.au

Name: _____

Title: _____

Signature: _____

Date: _____

Acceptance of this Agreement may also be confirmed by email and shall be deemed execution of this Agreement.